

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 13, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV04159

BAJO-ISLAS v. ROSSETTAS ENTERPRISES, INC.

MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT

The motion is granted.

The Court finds that the settlement falls within a range of reasonableness and is presumptively valid; appears to be a product of serious, informed and non-collusive negotiations; and has no obvious deficiencies. The Court grants preliminary approval of the settlement; conditionally certifies the class; and approves the class notice as to form and content provided the Notice is issued in both English and Spanish languages.

Counsel should appear to set a final hearing on the question of whether the proposed class action settlement, class counsel’s fees and expenses, the class representative’s enhancement award, and the administrator’s fees and costs should be finally approved as fair, reasonable and adequate as to the members of the settlement class.

No. 25CV00917

JAMBA CONSTRUCTION, INC. v. VNH BUILDERS

PLAINTIFF’S MOTION TO STRIKE ANSWER AND CROSS-COMPLAINT OF VNH BUILDERS

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 13, 2026 TIME: 8:30 A.M.

The motion to strike the answer and cross-complaint is granted.

This is a construction contract dispute. Jamba Construction, Inc. (“Jamba”) filed this complaint against defendants, including VNH Builders, a Joint Venture, (“VNH”) alleging breach of contract, quantum meruit, common counts, prompt payment penalty, recovery of money due on stop notice, and claim on payment bond. VNH filed an answer and cross-complaint through counsel on June 3, 2025. VNH’s counsel then sought to be relieved, and the Court granted this request on February 23, 2026. VNH is currently unrepresented.

On April 26 2026, Jamba filed this motion, seeking to strike VNH’s answer and its cross-complaint and for sanctions in the amount of \$1,260.00. Jamba asserts the Court should strike VNH’s answer and cross-complaint because it is a corporate entity without representation which is not permitted and it has adequate time to secure new counsel. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141.) There is no opposition.

On May 6, defendant Santa Cruz County Public Works requested entry of default against VNH. Default was entered on May 6, 2026.

The court may, on a motion to strike made pursuant to Code Civ. Proc. § 435 or at any time in its discretion and on terms it deems proper, take the following action:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading [see Code Civ. Proc. § 431.10 (immaterial allegation and irrelevant matter); or
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. § 436)

It is undisputed that VNH is a corporate entity, and “under a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record.” (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145.)

At the February 23, 2026 hearing, the Court set a further case management conference regarding identification of counsel for VNH. At the April 13, 2026, hearing, no one from VNH appeared and plaintiff’s counsel told the Court he would be filing a motion to strike the answer. This motion, and the motion to be relieved, were served on VNH, both with no opposition. Further, VNH failed to respond to Santa Cruz County Public Work Department’s cross-complaint and the Court entered VNH’s default on May 6, 2026. VNH’s failure to obtain new legal representation and its failure to participate in this matter or oppose this motion demonstrate

LAW AND MOTION TENTATIVE RULINGS

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it does not intend to litigate this matter and therefore, its answer and cross-complaint are stricken. The Court declines to award the requested sanctions.

No. 24CV01806

FARR v. RUSH

**PARTITION REFEREE AMY HARRINGTON'S MOTION FOR APPROVAL OF
REFEREE REPORT AND REFEREE'S RECOMMENDATIONS AND FOR APPROVAL
OF REFEREE FEES AND COSTS**

The unopposed motion is granted.

Amy Harrington was appointed referee in this matter on September 16, 2025, with authority to partition the property by sale. The Court approved the sale on April 13, 2026. Harrington recommends reimbursement to plaintiff in the amount of \$303,826.30 to be deducted from defendant's share of the net proceeds of the sale, totaling \$499,922.78, which includes \$50,017.01 for mortgage, tax, and insurance payments made from May 2025 through February 2026. Harrington asserts plaintiff did not provide documentation reflecting the monthly HELOC payments. [Plaintiff had requested reimbursement in the amount of \$355,286.74. Defendant did not request offsets or credits.] Harrington's requested fees in the amount of \$12,367.50 based upon more than 25.70 hours of work at the rate of \$475.00/hour appear reasonable and are also granted.

Counsel for plaintiff filed two declarations, requesting that Harrington "submit an analysis and recommendation to the court for distribution of the equity produced in the anticipated sale of the Property" (Decl. of Siegel at ¶ 8.) The parties should appear to provide input to the Court as to whether a supplemental report is needed from Harrington to address this issue.

LAW AND MOTION TENTATIVE RULINGS

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No. CV157538

HAINES v. FARLEY

**CELMA FARLEY'S MOTION TO CORRECT, MODIFY, AND/OR SET ASIDE THE
PROPOSED REPORT OF REFEREE**

The motion is denied. Parties to appear to discuss the status of this case in connection with the Judgment and the referee's report and recommendations.

No. 26CV00232

LAING v. STEINBERG

**APPLICATION OF KIMBERLYA. DOUGHERTY TO APPEAR PRO HAC VICE
(UNOPPOSED)**

The unopposed application of Kimberly A Dougherty to be admitted *pro hac vice* in this matter is granted.

No. 26CV01650

REY v. BLACET

PLAINTIFF'S MOTION FOR TRIAL PREFERENCE

The motion for preference is granted.

I. BACKGROUND AND MOTION

Delia Rey, who is 91 years old, ("Plaintiff" or "Rey") filed this action for medical malpractice against Precision Physical Therapy & Fitness and Andrew Blacet ("defendants"). During a physical therapy session, Blacet allegedly let go of the gait belt used to stabilize plaintiff and she fell, breaking her right elbow and sustaining other injuries. Due to her age, surgery was not an option to repair the bone fracture and she now is unable to use her walker. She also sustained vision loss. This complaint was filed May 18, 2026, and on June 11, 2026, plaintiff filed this motion for preferential trial setting pursuant to Code of Civil Procedure section 36, subdivision (a).

Plaintiff seeks preference because she is over the age of 70 (91 years old), has a substantial interest in the case as she is the only plaintiff, and because of her deteriorating health.

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 13, 2026 TIME: 8:30 A.M.

Plaintiff's counsel states that plaintiff is bed-bound and has lost weight and mental capacity; he asserts that plaintiff and her daughter have doubts about Delia's ability to retain competency for trial should the case go forward in the typical timeframe. (Decl. of Davis at ¶¶ 3, 21-23.) The motion is accompanied by a declaration from plaintiff's counsel, Jack Davis. Plaintiff requests this matter be set for trial in October 2026.

Defendants oppose, arguing that plaintiff did not establish she is over 70 or that her health demands trial preference. Defendants maintain that plaintiff relies solely on her counsel's declaration which contains no competent evidence. Defendants contend responsive pleadings have yet to be filed and defendants seek to file a motion to strike – the earliest date available is September 16, 2026. Defendants argue that plaintiff failed to present sufficient medical evidence that her health is such that preference is necessary.

II. DISCUSSION

“A party to a civil action who is over age 70 may petition the court for a trial setting preference. The party may file a motion for preference at any time during the pendency of the action. (C.C.P. 36(c)(2).) The court must grant the petition so long as both of the following conditions are met: (a) The party has a substantial interest in the whole action. (C.C.P. 36(a)(1).) (b) A preference is necessary to prevent prejudice to the party's interest in the litigation due to the party's health. (C.C.P. 36(a)(2).) (2) *Supporting Evidence*. A motion for preference on this ground may be supported by an affidavit, signed by the party's attorney, and based on the attorney's information and belief as to the party's medical condition. This affidavit is admissible only for purposes of the motion. (C.C.P. 36.5.) A physician's declaration is not required. (*Fox v. Superior Court* (2018) 21 C.A.5th 529, 534, 230 C.R.3d 493.) (3) *Mandatory Nature*. Once the court finds the existence of both conditions, the preference is mandatory. (*Rice v. Superior Court* (1982) 136 C.A.3d 81, 86, 185 C.R. 853.)” (8 Witkin Cal. Proc Trial § 58.)

A declaration based upon an attorney's information and belief as to the party's medical condition is sufficient. Therefore, defendants' evidentiary objections to the declaration of Mr. Davis are overruled. A physician's declaration is not necessary. “The attorney's declaration can consist entirely of hearsay and conclusions. [Citation.]” (Weil & Brown *Civil Proc. Before Trial* (TRG 2025) § 12:247.1) If the court grants the motion, it has no discretion to delay the trial setting and is not permitted to balance conflicting interests. “[T]rial must be set within 120 days even if the opposing parties have not completed discovery or pretrial preparation. [Citations.]” (*Id.* at § 12:248.1.)

Given the declaration of counsel concerning plaintiff's age (91 years old) and fragile medical condition, as well as her substantial interest in the case, the Court will grant the motion pursuant to Code of Civil Procedure section 36, subdivision (a). The Court acknowledges

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defendants' opposition and the issues it raises, including that this case was filed in May 2026 and is not yet at issue. The Court orders the parties to meet and confer to set an expedited schedule for anticipated discovery and law and motion practice. Defendants stated they could not obtain a date for their motion to strike until mid- September. The Court reminds defendants they can move to seek ex parte relief for an order shortening time. The Court finds good cause to order a single continuance of 15 days, requiring trial to be set within 135 days of the granting of this motion – or by November 25, 2026. ["Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except ...upon showing of good cause stated in the record. Any continuance shall be for no more than 15 days[.]" (Code Civ. Proc., § 36, subd. (f).)]

No. 25CV03458

REISER v. PAYSTAND, INC.

MOTION TO BE RELIEVED AS COUNSEL (UNOPPOSED)

A Tentative Rulings for this matter will either be posted later today (before 5:00 p. m.), or will be delivered at the time of the hearing. If posted later today, parties are not required to contact the Court in order to appear and contest the tentative ruling.